

The parties are reminded of the requirements of Code of Civil Procedure section 664.6 in the event they wish the Court to enter judgment with retention of jurisdiction and the parties wish retain possession of the settlement agreements without formal filing at this time. Code of Civil Procedure section 664.6(a), provides:

If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.

Plaintiffs' motion is denied without prejudice.

4. CU0001664 Carla Markeeta Jefferson, et al. vs. Heating-Cooling Service Co., et al.

Defendants' motion to continue trial and reopen discovery is granted.

Legal Standard

"Continuances are granted only on an affirmative showing of good cause requiring a continuance." *In re Marriage of Falcone & Fyke* (2008) 164 Cal.App.4th 814, 823. A trial court has broad discretion in considering a request for a trial continuance. *Pham v. Nguyen* (1997) 54 Cal.App.4th 11, 13-18. California Rules of Court, rule 3.1332 sets forth factors for the Court to consider in ruling on a motion to continue trial.

"To ensure the prompt disposition of civil cases, the dates assigned for a trial are firm. All parties and their counsel must regard the date set for trial as certain." Cal. Rules of Court, rule 3.1332(a).

"A party seeking a continuance of the date set for trial, whether contested or uncontested or stipulated to by the parties, must make the request for a continuance by a noticed motion or an ex parte application..., with supporting declarations. The party must make the motion or application as soon as reasonably practical once the necessity for the continuance is discovered." Cal. Rules of Court, rule 3.1332(b).

"Although continuances of trials are disfavored, each request for a continuance must be considered on its own merits. The court may grant a continuance only on an affirmative showing of good cause requiring the continuance." Cal. Rules of Court, rule 3.1332(c).

Circumstances that may indicate good cause include:

- (1) The unavailability of an essential lay or expert witness because of death, illness, or other excusable circumstances;
- (2) The unavailability of a party because of death, illness, or other excusable circumstances;

- (3) The unavailability of trial counsel because of death, illness, or other excusable circumstances;
- (4) The substitution of trial counsel, but only where there is an affirmative showing that the substitution is required in the interests of justice;
- (5) The addition of a new party if:
 - (A) The new party has not had a reasonable opportunity to conduct discovery and prepare for trial; or
 - (B) The other parties have not had a reasonable opportunity to conduct discovery and prepare for trial in regard to the new party's involvement in the case;
- (6) A party's excused inability to obtain essential testimony, documents, or other material evidence despite diligent efforts; or
- (7) A significant, unanticipated change in the status of the case as a result of which the case is not ready for trial.

Cal. Rules of Court, rule 3.1332(c).

"In ruling on a motion or application for continuance, the court must consider all the facts and circumstances that are relevant to the determination." Cal. Rules of Court, rule 3.1332(d).

These [facts and circumstances] may include:

- (1) The proximity of the trial date;
- (2) Whether there was any previous continuance, extension of time, or delay of trial due to any party;
- (3) The length of the continuance requested;
- (4) The availability of alternative means to address the problem that gave rise to the motion or application for a continuance;
- (5) The prejudice that parties or witnesses will suffer as a result of the continuance;
- (6) If the case is entitled to a preferential trial setting, the reasons for that status and whether the need for a continuance outweighs the need to avoid delay;
- (7) The court's calendar and the impact of granting a continuance on other pending trials;
- (8) Whether trial counsel is engaged in another trial;
- (9) Whether all parties have stipulated to a continuance;
- (10) Whether the interests of justice are best served by a continuance, by the trial of the matter, or by imposing conditions on the continuance; and
- (11) Any other fact or circumstance relevant to the fair determination of the motion or application.

Cal. Rules of Court, rule 3.1332(d).

In determining whether to reopen discovery, the court must consider the necessity of and reasons for the additional discovery, the diligence or lack thereof by the party seeking to reopen discovery in attempting to complete discovery prior to the cutoff, whether permitting the discovery will prevent the case from going forward on the trial date or will otherwise prejudice any party, and any past continuances of the trial date. See Code Civ. Proc. § 2024.050(b).

Discussion

Defendants assert Plaintiff Rountree's disclosure of additional alleged injuries and medical providers immediately before his noticed deposition on January 26, 2026, as well as his non-appearance at a scheduled neurological medical examination on February 20, 2026, requires a continuance, because there is insufficient time to conduct required discovery prior to the current discovery cutoff of March 22, 2026. The Court agrees. The Court finds that: there is good cause to reopen discovery under Code of Civil Procedure section 2024.050(b); and the Rule 3.1332 factors support the requested trial continuance (namely: (c)(6) and (b)(1), (2), (3), (4), (5) and (10)). Trial is continued to November 3, 2026, at 9:00 a.m., mandatory settlement conference is continued to October 12, 2026, at 10:00 a.m., pretrial conference is continued to September 18, 2026, at 11:00 a.m. All discovery and related dates will be based on the new trial date.

5. CU0001845 Mark Gold, et al. vs. Robert A. Tonnies, et al.

Defendants' counsel's unopposed motion to be relieved as counsel is granted. Counsel is ordered to prepare and submit a revised order (MC-053) that reflects the continued case-management conference date of April 6, 2026. The order relieving counsel will be deemed effective only when Counsel files a proof of service with the Court of a copy of the signed order on the client. *See* California Rules of Court, Rule 3.1362(e). Counsel shall submit the revised order for the Court's signature within two (2) court days of the Court's order becoming final. No appearances are required.

6. CU0002095 Julie Childs v. Michael Brewer

Respondent's November 12, 2025, request for attorney fees will be heard by Judge S. Thomsen on April 13, 2026, at 09:00, in Department 4.

7. CU0002489 Matthew William Vickers vs. Ethan Oliver Ralph

Defendant Ralph's special motion to strike under Code of Civil Procedure section 425.16 (Anti-SLAPP Motion) is granted in part as described herein. His request for fees and costs is denied.

Oversized Brief

Subject to exceptions which do not apply here, under California Rules of Court, rule 3.1113(d), "no opening ... memorandum may exceed 15 pages." Cal. Rules of Court, rule 3.1113(d). The memorandum submitted in support of the present motion is 24 pages. The Court's records reflect that plaintiff did not file an appropriate application with the Court requesting permission to file a longer memorandum. *See* Cal. Rules of Court, rule 3.1113(e). That stated, the Court, in the exercise of its discretion, will consider the moving papers in their entirety. Defendant is admonished to comply with the California Code of Civil Procedure and the California Rules of Court.

Request for Judicial Notice

At bar, Defendant seeks judicial notice of a complaint filed in CU0001860, Ralph Decl. ¶ 48 Exhibit 10, but fails to make such request in a separate document as required. *See* Cal. Rules of